

Tentative Rulings for August 13, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2405844	ZAVALA-RIOS vs RODRIGUEZ	MOTION TO COMPEL DISCOVERY RESPONSES FROM DEFENDANT TO REQUESTS FOR ADMISSION [SET ONE]
CVRI2405844	ZAVALA-RIOS vs RODRIGUEZ	MOTION TO COMPEL DISCOVERY RESPONSES FROM DEFENDANT TO DEMAND FOR PRODUCTION AND INSPECTION OF DOCUMENTS AND OTHER TANGIBLE THINGS [SET ONE]
CVRI2405844	ZAVALA-RIOS vs RODRIGUEZ	MOTION TO COMPEL DISCOVERY RESPONSES FROM DEFENDANT TO SPECIAL INTERROGATORIES [SET ONE]
CVRI2405844	ZAVALA-RIOS vs RODRIGUEZ	MOTION TO COMPEL DISCOVERY RESPONSES FROM DEFENDANT TO FORM INTERROGATORIES [SET ONE]

Tentative Ruling:

Plaintiff's Motion to Compel Further Responses is denied,

Defendant served objection only responses. Verifications by a party are not required for objection only responses; an attorney's signature is sufficient. (See Code Civ. Proc., §§ 2030.250 2031.250, 2033.240.) Thus, these are not motions to compel, but rather motions to compel further responses.

A party may file a motion compelling further answers to interrogatories, requests for production, and requests for admissions if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) Unless *notice of the motion is given within 45 days of the service* of the verified response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at §§ 2030.300(c), 2031.310(c), 2033.290(c).) Failure to comply with the discovery deadline "is only 'jurisdictional' in the sense that it renders the court without authority to rule on motions to compel other than to deny them." (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Contrary to Plaintiff's assertion, the motions are untimely. Defendant electronically served his responses on 3/27/26, which results in a deadline of 5/13/26 (45 days + 2 court days). Plaintiff did not file and serve the motions until 5/27/26. Plaintiff contends Local Rule 3310 extends the deadline. Nothing in Local Rule 3310 does such—it merely requires moving documents to be filed within 10 court days after reserving the

hearing date. It does not extend the time period under the Code of Civil Procedure. Such an interpretation would conflict with the Code of Civil Procedure. “A trial court is without authority to adopt local rules or procedures that conflict with statutes or with rules of court adopted by the Judicial Council, or that are inconsistent with the Constitution or case law.” (*Elkins v. Superior Court* (2007) 41 Cal.4th 1337, 1351.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502950	JAFFE vs PRESTIGE AUTOSPORTS GROUP INC	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION (SET ONE) AND MONETARY SANCTIONS

Tentative Ruling:

Plaintiff’s Motion to Compel is denied for failure to comply with the court’s orders on 3/24/26 and 5/19/26.

Plaintiff filed the instant motion to compel further responses to his first set of request for admission on February 26, 2026. The motion was initially set for hearing to be held on March 24, 2026. Prior to the hearing, the Court ordered the hearing to be continued to May 19, 2026, for reason Plaintiff’s declaration failed to describe any effort made to engage in a reasonable and good faith attempt to meet and confer. (See Minute Order dated March 24, 2026.)

Prior to the continued hearing, the Court once again ordered the hearing to be continued to June 18, 2026, ordering Defendants to file any opposition by June 04, 2026, and Plaintiff to file a rely on or before June 09, 2026. (See Minute Order dated May 19, 2026.) It appears the continuance was ordered on the basis of the declaration filed by Defendant, noting Plaintiff’s failure to serve notice of hearing on motion to compel.

To date, Plaintiff has not complied with the Court’s February 26, 2026 order to submit supplemental declaration regarding the good faith effort to meet and confer. Moreover, Defendant failed to file an opposition by June 04, 2026. Instead, on June 09, 2026, it only filed a separate statement in opposition to the motion.

There are procedural requirements which must be met for an order compelling the further responses, including a requirement for good faith meet and confer (Code Civ. Proc., §§ 2033.290(b), 2016.040).

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506391	GEORGE, AN INDIVIDUAL vs KIA AMERICA, INC., A CALIFORNIA CORPORATION	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: Hearing continued to 9/16/26.